

Our ref: CASE-2020712

9 April 2020

Mr Richard Mclean

<rich@richmclean.com.au>

Dear Mr Mclean

Your complaint against Victoria Police and Australian Health Practitioner Regulation Agency (AHPRA)

Thank you for your complaint, received on 4 March 2020.

As with all complaints, IBAC assesses whether matters it receives are, or involve, public interest disclosures under the *Public Interest Disclosures Act 2012* (PID Act) to see if particular protections and confidentiality obligations apply. IBAC has determined that your complaint should not be treated as a 'public interest complaint'.

And after careful consideration of all the information you provided, IBAC has decided not to investigate or refer your complaint to another agency for investigation. This decision was made in accordance with section 67 of the *Independent Broad-based Anti-corruption Commission Act 2011*.

This decision was made in accordance with section 26 of the PID Act, particularly subsection 3. Specifically, the information doesn't show or tend to show the public officer engaged in improper conduct or detrimental action (s.9 (1) (a) (i) & (ii)). Although IBAC has determined your complaint is not a public interest complaint, you will still be entitled to the protections under part 6 of the PID Act.

Please note AHPRA is not a public body, as per section 6 of the IBAC Act, consequently, this allegation is considered to be outside of IBAC's jurisdiction. It is recommended you consult a legal representative to advise you of your legal rights.

Most importantly, I would like to reiterate to you the support available personally for you, following my email dated 7 April 2020. I was concerned to read in your email dated 6 April 2020 how you are feeling at this time and it indicates to me you may be in need of support from a welfare perspective. I want to again reiterate that help and support is available from IBAC's employee assistance program which we can extend to our service users. This is provided by Converge on 1300 687 327. Converge is an independent company that provides professional welfare support services. You would need to advise them you are an IBAC referral so that this support service may be accessed by you confidentially, but at no cost to you.

A couple of other options are:

- Beyond Blue Tel: 1300 22 4636
- Life Line Australia Tel: 13 11 14

Please do let me know if there is anything I can do to put you in touch with one of these services to support you.

IBAC appreciates receiving information from members of the community, like you, about possible corrupt conduct in the Victorian public sector. All information received is recorded and helps IBAC to learn of potential corruption risks, and helps us to target our prevention and education activities.

However, IBAC is only able to investigate a very small number of matters.

To better understand IBAC's assessment process, the definition of 'corrupt conduct' and the thresholds for IBAC to investigate corruption, and our prevention and corruption exposure work, please visit our website www.ibac.vic.gov.au

Yours sincerely

A handwritten signature in dark ink, appearing to read 'Sue', with a stylized flourish at the end.

Sue Kapourelakos
Manager
Assessment & Review